



Security Council

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Letter dated 27 April 2023 from the Secretary-General addressed to the President of the Security Council

I have the honour to refer to the letter from the President of the Security Council of 21 April 2022 ([S/2022/343](#)), responding to my letter to the President of the Security Council of 7 April 2022 ([S/2022/300](#)), concerning the situation of the *Safer*, an oil storage and offloading vessel moored off the west coast of Yemen.

I take this opportunity to update the Security Council on recent developments and the steps to be taken by the United Nations with a view to avoiding a major humanitarian, environmental and economic catastrophe in the Red Sea and beyond.

Under the overall coordination of the United Nations Resident and Humanitarian Coordinator for Yemen, and under the programmatic leadership of the United Nations Development Programme (UNDP), UNDP has signed contracts with an international salvage operation company for the development of a detailed operational plan for the emergency phase of the project and for the ship-to-ship transfer of the crude oil from the *Safer* to a very large crude carrier vessel. In this regard, UNDP has also entered into a contract with a global shipping company for initial modifications to be made to the carrier vessel. An additional contract is expected to be concluded by UNDP for the purchase of the carrier vessel. The early conclusion of that contract is of paramount importance and a necessary major step towards implementing the salvage operation in the Red Sea in May 2023. In addition, the Yemeni authorities have recently signed the necessary additional agreements on the ownership of the carrier vessel and continue to engage with the United Nations on the operational plan for the emergency operation, the oil spill contingency plans, the disposal or recycling of the *Safer* and the potential sale of the crude oil. In this regard, UNDP has confirmed to the Government of Yemen that the project is being implemented by UNDP pursuant to the agreement between the Government of Yemen and UNDP dated 8 November 1976, which regulates the assistance to be provided by UNDP to the Government of Yemen.

To help mitigate the significant humanitarian, environmental and economic risks associated with this operation, including the potential loss of life, loss of income and an environmental disaster of catastrophic proportions, UNDP has also engaged with expert industry professionals, a leading international insurance broker, a ship broker and oil spill experts, as well as United Nations expertise – including the International Maritime Organization and the World Food Programme, as the lead agencies of the logistics cluster – to inform the development and implementation of the project. UNDP will endeavour to obtain the maximum types of insurance coverage available on the market. The clean-up costs alone would be extremely high. However, pollution insurance will not cover the entire estimated damage in the event of a



catastrophe, and the insurance coverage currently sought is only for the emergency salvage phase of the operation. Insurance coverage for the next phase of the operation, including for the towing of the *Safer* to a scrap yard, will be sought at a later stage.

Although UNDP is doing everything it can both to mitigate the inherent risks in the execution of the project and to acquire insurance to cover losses that may arise in the event of a catastrophe, certain losses cannot be insured, either in part or in full. Execution of the project could thus give rise to significant claims against the United Nations. However, the cost of inaction in this case is too high.

I wish to reaffirm that the United Nations remains resolved to ensuring the arrival of the carrier vessel to the site of the *Safer* in May 2023, to initiate emergency operations, including the ship-to-ship transfer of the crude oil. However, I must emphasize that this is dependent on meeting the remaining funding gap for the emergency phase of the operation. In that regard, while the United Nations, with the generous contribution of many donors, including the private sector, has to date mobilized \$99.6 million of the \$129 million required for the emergency phase of the project, there still remains a funding gap of \$29.4 million that needs to be urgently met in order for the operation to proceed.

The second phase of the operation, which comprises recycling the *Safer* at a green salvage yard and the installation of a catenary anchor legged mooring buoy to safely tether the replacement vessel, is also critical to the plan's success and is estimated to cost an additional \$19 million. A donor conference for both phases of the UNDP project is expected to be held on 4 May 2023, but funding for the first phase should be secured ahead of the event.

The ongoing support and commitment of Member States to this critical initiative remains essential, in particular, with a view to ensuring that arrangements with local and international authorities are in place to guarantee a safe and secure environment for the operation, including free access and safe navigation to, from and in the area by relevant actors.

I will keep the Security Council apprised of ongoing developments regarding the implementation of the project.

I would be grateful if the present letter could be circulated to the members of the Security Council.

(Signed) António **Guterres**
